

Apportionment Act 1928

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APPORTIONMENT ACT 1928

2020 REVISED EDITION

This revised edition incorporates all amendments up to and including 1 December 2021 and comes into operation on 31 December 2021

An Act for the better apportionment of rents and other periodical payments.

[28 December 1928]

Short title

1. This Act is the Apportionment Act 1928.

Interpretation

2. In this Act —

“annuities” includes salaries and pensions;

“dividends” includes (besides dividends strictly so called) all payments made by the name of dividend, bonus or otherwise out of the revenue of trading or other public companies, divisible between all or any of the members of the respective companies, whether the payments are usually made or declared at any fixed times or otherwise; and all that divisible revenue shall, for the purposes of this Act, be deemed to have accrued by equal daily increment during and within the period for or in respect of which the payment of the same revenue is declared or expressed to be made, but does not include payments in the nature of a return or reimbursement of capital;

“rents” includes all periodical payments or renderings in lieu of or in the nature of rent.

Rents, etc., to accrue from day to day

3. All rents, annuities, dividends and other periodical payments in the nature of income (whether reserved or made payable under an instrument in writing or otherwise) shall, like interest on money lent, be considered as accruing from day to day, and shall be apportionable in respect of time accordingly.

Apportioned part of rent, etc., to be payable when next entire portion due

4. The apportioned part of any such rent, annuity, dividend or other payment shall be payable or recoverable —

- (a) in the case of a continuing rent, annuity, or other such payment, when the entire portion of which such apportioned part forms part becomes due and payable, and not before; and
- (b) in the case of a rent, annuity, or other such payment determined by re-entry, death, or otherwise, when the next entire portion of the same would have been payable if the same had not so determined, and not before.

Remedies for recovering apportioned parts

5.—(1) All persons and their respective executors, administrators and assigns, and also the executors, administrators and assigns respectively of persons whose interests determine with their own deaths, shall have such or the same remedies for recovering such apportioned parts as aforesaid when payable (allowing proportionate parts of all just allowances) as they respectively would have had for recovering the entire portions as aforesaid if entitled thereto, respectively.

(2) Persons liable to pay rents reserved out of or charged on lands or tenements, and the same lands or tenements, shall not be resorted to for any such apportioned part forming part of an entire or continuing rent as aforesaid specifically, but the entire or continuing rent, including such apportioned part, shall be recovered and received by the person who, if the rent had not been apportionable under this Act or otherwise, would have been entitled to the entire or continuing rent, and the apportioned part shall be recoverable from such person by the executors or other parties entitled under this Act to the same by suit.

Exclusion of policies of assurance

6. Nothing in this Act shall render apportionable any annual sums made payable in policies of assurance of any description.

Exclusion by express stipulation

7. This Act shall not extend to any case in which it is expressly stipulated that no apportionment shall take place.

LEGISLATIVE HISTORY

APPORTIONMENT ACT 1928

This Legislative History is a service provided by the Law Revision Commission on a best-efforts basis. It is not part of the Act.

1. Ordinance 25 of 1928—Apportionment Ordinance, 1928

Bill	: G.N. No. 1799/1928
First Reading	: 8 October 1928
Second Reading	: 29 October 1928
Third Reading	: 10 December 1928

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| Commencement | : | 24 December 1928 (assent)
28 December 1928 (publication) |
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| 2. 1936 Revised Edition—Apportionment Ordinance (Chapter 168) | | |
| Operation | : | 1 September 1936 |
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| 3. 1955 Revised Edition—Apportionment Ordinance (Chapter 21) | | |
| Operation | : | 1 July 1956 |
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| 4. 1970 Revised Edition—Apportionment Act (Chapter 27) | | |
| Operation | : | 1 March 1971 |
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| 5. 1985 Revised Edition—Apportionment Act (Chapter 8) | | |
| Operation | : | 30 March 1987 |
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| 6. 1998 Revised Edition—Apportionment Act (Chapter 8) | | |
| Operation | : | 15 December 1998 |
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| 7. 2020 Revised Edition—Apportionment Act 1928 | | |
| Operation | : | 31 December 2021 |

Abbreviations

(updated on 29 August 2022)

G.N.	Gazette Notification
G.N. Sp.	Gazette Notification (Special Supplement)
L.A.	Legislative Assembly
L.N.	Legal Notification (Federal/Malaysian)
M.	Malaya/Malaysia (including Federated Malay States, Malayan Union, Federation of Malaya and Federation of Malaysia)
Parl.	Parliament

S	Subsidiary Legislation
S.I.	Statutory Instrument (United Kingdom)
S (N.S.)	Subsidiary Legislation (New Series)
S.S.G.G.	Straits Settlements Government Gazette
S.S.G.G. (E)	Straits Settlements Government Gazette (Extraordinary)